

Dream Enterprises LLC · DBA Dream Puppies / Puppy Heaven

(321) 697-8864 · puppyheavenllc.com · Template

Important Notice: Please read this agreement in its entirety before signing. This document constitutes a legally binding contract. Complete all fields before executing this contract. Both parties are encouraged to seek independent legal counsel.

PUPPY AND TRANSACTION INFORMATION

PUPPY NAME / ID		BREED / COLOR		SEX	
DATE OF BIRTH		AGE AT TRANSFER		APPROX. WEIGHT	
MICROCHIP NUMBER				MICROCHIPPED (Y/N)	
CVI CERTIFICATE NO.		VACCINATIONS (ROUNDS)			
TOTAL PURCHASE PRICE (\$)		DEPOSIT PAID (\$)		BALANCE DUE (\$)	
AGREEMENT DATE					

ARTICLE I — PARTIES AND DEFINITIONS

Seller: Dream Enterprises LLC d/b/a Dream Puppies (hereinafter 'Breeder' or 'Seller')

Authorized Rep: Carlos Lebron Rivera | CLR | Authorized Seller

Buyer: BUYER FULL LEGAL NAME

(hereinafter 'Buyer'). Collectively referred to as the 'Parties.'

1.2 — Definitions

'Agreement' means this Puppy Purchase Agreement and all exhibits incorporated herein. 'Puppy' means the individual dog identified in the signature block. 'Transfer Date' means the date physical possession of the Puppy passes to Buyer. 'Veterinarian' means a licensed veterinarian holding an active license in the state of Buyer's residence.

1.3 — Nature of Transaction

This is a sale of a companion animal by a hobby breeder. Breeder sells fewer than two (2) litters or twenty (20) dogs per year and may or may not meet the statutory definition of 'pet dealer' under applicable law. Buyer acknowledges this distinction and agrees that Breeder's obligations under this Agreement are limited to those expressly stated herein, subject to applicable law.

ARTICLE II — BUYER PREREQUISITES

2.1 — Representations of Buyer

By signing this Agreement, Buyer represents and warrants that: (a) Buyer is at least eighteen (18) years of age; (b) Buyer's residence permits the keeping of a dog; (c) all household members have been informed of and consent to the addition of the Puppy; (d) Buyer has identified a licensed veterinarian prior to Transfer Date; and (e) Buyer is financially capable of providing ongoing veterinary and husbandry care.

2.2 — 72-Hour Veterinary Examination

Buyer agrees to present the Puppy to a licensed veterinarian within seventy-two (72) hours of the Transfer Date. Failure to do so constitutes a waiver of any health-related claim under this Agreement and does not affect Buyer's statutory rights, if any, under applicable law.

2.3 — Care Obligations Post-Transfer

Buyer agrees to provide: (a) age-appropriate, high-quality nutrition; (b) timely core vaccinations per veterinarian's recommendation; (c) heartworm and external parasite prevention on a veterinarian-recommended schedule; (d) prompt veterinary attention upon signs of illness or injury; and (e) a safe living environment free from known toxins, hazardous substances, and undue risk of physical harm.

2.4 — No Resale / Right of First Refusal

Buyer agrees not to sell, transfer, donate, or surrender the Puppy to any shelter, rescue, or third party without first providing Breeder thirty (30) days' written notice and offering Breeder the right to reclaim the Puppy at no cost. This clause survives the expiration of all warranties.

ARTICLE III — LIMITED HEALTH WARRANTY

3.1 — Scope of Warranty

Breeder warrants, to the best of Breeder's knowledge and based on veterinary examination conducted prior to Transfer Date, that the Puppy was free from communicable illness, known congenital defects, and internal or external parasites (excluding fleas and ticks) at the time of transfer.

3.2 — Warranty Periods

(a) Communicable illness: 72 hours from Transfer Date. (b) Congenital or hereditary conditions: One (1) year from Transfer Date, subject to certification by a licensed veterinarian of Buyer's choosing. (c) All warranty claims must be submitted to Breeder in writing within two (2) business days of veterinary certification.

STATUTORY REF | Fla. Stat. § 828.29 — Health Requirements & Consumer Guarantee — flsenate.gov/Laws/Statutes/2024/828.29

3.3 — Remedy

Upon a valid warranty claim, Breeder's sole obligation, at Breeder's election, shall be: (a) replacement of the Puppy with one of comparable value when available; or (b) a store credit equal to the purchase price toward a future Puppy from Dream Puppies. Breeder shall not be liable for any veterinary expenses, third-party costs, consequential damages, or any other monetary relief beyond the original purchase price.

3.4 — Conditions Limiting Warranty

This warranty is void if illness or death results from: (a) failure to complete the 72-hour veterinary examination; (b) exposure to unvaccinated animals or contaminated environments; (c) neglect, abuse, or failure to provide adequate nutrition; (d) trauma, accident, or injury attributable to Buyer's environment or supervision; (e) unauthorized medications or supplements; (f) toxic household substances; or (g) any act or omission by Buyer or any person in Buyer's household following Transfer Date.

ARTICLE IV — GENETIC DISCLAIMER

DREAM ENTERPRISES LLC MAKES NO REPRESENTATION OR WARRANTY, EXPRESS OR IMPLIED, REGARDING THE GENETIC COMPOSITION, GENETIC HEALTH OUTCOMES, OR LONG-TERM PHENOTYPIC EXPRESSION OF ANY PUPPY SOLD UNDER THE DREAM PUPPIES NAME.

Breeder is a hobby breeder and not a genetic testing laboratory. Even where parental health screening has been performed, recessive alleles, polygenic conditions, and environmentally triggered diseases may emerge in offspring that were undetectable at the time of sale.

STATUTORY REF | Axelsson et al. (2022) — Canine Genetic Variability | PLoS Genetics / PubMed Central — ncbi.nlm.nih.gov/pmc/articles/PMC9018920/

ARTICLE V — LIMITATION OF LIABILITY AND INDEMNIFICATION

5.1 — Liability Cap

The total cumulative liability of Dream Enterprises LLC, its members, managers, agents, and representatives, under any theory of recovery, shall not exceed the original purchase price paid by Buyer for the Puppy.

5.2 — Exclusion of Consequential Damages

In no event shall Breeder be liable for indirect, incidental, consequential, special, or punitive damages of any kind, including but not limited to emotional distress, loss of companionship, lost income, or costs of replacement veterinary care, even if Breeder has been advised of the possibility of such damages.

5.3 — Indemnification

Buyer agrees to indemnify, defend, and hold harmless Dream Enterprises LLC and its members, managers, agents, and representatives from and against any and all claims, damages, losses, costs, and expenses (including reasonable attorneys' fees) arising from: (a) Buyer's care, custody, or control of the Puppy after Transfer Date; (b) any third-party claim resulting from the Puppy's actions after Transfer Date; or (c) Buyer's breach of any provision of this Agreement.

5.4 — Force Majeure

Breeder shall not be liable for any delay or failure in performance resulting from causes outside Breeder's reasonable control, including acts of God, veterinary emergencies, disease outbreak, natural disaster, or government action.

ARTICLE VI — DISPUTE RESOLUTION AND ARBITRATION

ARBITRATION NOTICE — PLEASE READ CAREFULLY

THE PARTIES UNDERSTAND THAT BY AGREEING TO ARBITRATION, THEY ARE WAIVING THE RIGHT TO FILE A LAWSUIT IN COURT, TO HAVE A JUDGE OR JURY DECIDE THE DISPUTE, AND TO PARTICIPATE IN A CLASS ACTION EXCEPT AS PROHIBITED BY LAW.

6.1 — Dispute Resolution

Any dispute, claim, or controversy arising out of or relating to this Agreement, or the breach, termination, enforcement, interpretation, or validity thereof, shall first be submitted to good-faith mediation in Orange County, Florida. If mediation fails to resolve the dispute within sixty (60) days, the matter shall be resolved by binding arbitration administered by the American Arbitration Association ('AAA') under its Consumer Arbitration Rules then in effect.

6.2 — Arbitration Procedures

Arbitration shall take place in Orange County, Florida, unless the Parties agree otherwise in writing. The arbitration shall be conducted before a single arbitrator. The arbitrator's decision shall be final and binding. Judgment on the award rendered may be entered in any court having jurisdiction. The prevailing party shall be entitled to recover reasonable attorneys' fees and costs.

STATUTORY REF | Fla. Stat. Ch. 682 — Florida Arbitration Code — flsenate.gov/Laws/Statutes/2024/Chapter682

ARTICLE VII — GENERAL PROVISIONS

7.1 — Governing Law and Venue

This Agreement shall be governed by and construed in accordance with the laws of the State of Florida. Venue for any non-arbitrated proceeding shall lie exclusively in Orange County, Florida.

7.2 — Severability

If any provision of this Agreement is found to be invalid, illegal, or unenforceable, the remaining provisions shall continue in full force and effect.

7.3 — Entire Agreement

This Agreement constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior representations, negotiations, understandings, and agreements, oral or written. No amendment shall be valid unless made in writing and signed by both Parties.

7.4 — Electronic Signature

Electronic signatures, including typed-name confirmations and digital checkbox acknowledgments, shall have the same legal effect as handwritten signatures pursuant to applicable electronic signature law.

7.5 — Assignment

Buyer may not assign this Agreement without Breeder's prior written consent. Breeder may assign this Agreement in connection with a sale or transfer of the business without Buyer's consent.

7.6 — Waiver

No waiver of any breach or default shall be deemed a waiver of any subsequent breach or default.

7.7 — Counterparts

This Agreement may be executed in one or more counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

7.8 — Notice

All notices shall be in writing and delivered via email with delivery confirmation to the addresses in the signature block. Notice is deemed given upon confirmed delivery.

STATUTORY REF | Fla. Stat. Ch. 668 — Electronic Signatures / UETA — flsenate.gov/Laws/Statutes/2024/Chapter668

STATUTORY REF | Fla. Stat. Ch. 671 — Florida Uniform Commercial Code / Sale of Goods

ARTICLE VIII — FLORIDA STATUTORY CONSUMER NOTICE

Required Notice — Fla. Stat. § 828.29(12)

It is the consumer's right, pursuant to section 828.29, Florida Statutes, to receive a certificate of veterinary inspection with each dog or cat purchased from a pet dealer. Such certificate shall list all vaccines and deworming medications administered to the animal and shall state that the animal has been examined by a Florida-licensed veterinarian who certifies that, to the best of the veterinarian's knowledge, the animal was found to have been healthy at the time of the veterinary examination. In the event that the consumer purchases the animal and finds it to have been unfit for purchase as provided in section 828.29(5), Florida Statutes, the consumer must notify the pet dealer within 2 business days of the veterinarian's determination that the animal was unfit.

STATUTORY REF | Fla. Stat. § 828.29 — Full text, 2024 edition — flsenate.gov/Laws/Statutes/2024/828.29

CVI CERTIFICATE NO.

ARTICLE IX — REQUIRED ACKNOWLEDGMENTS

Buyer must initial or check each item below. Items marked **REVIEW** contain links to official legal sources — Buyer acknowledges having reviewed each source.

☐	I have read and understand the full terms of this Agreement and agree to be bound by them.	INITIALS	REQUIRED
☐	I have reviewed my statutory rights regarding this pet purchase. [Fla. Stat. § 828.29 — flsenate.gov/Laws/Statutes/2024/828.29]	INITIALS	REVIEW
☐	I understand electronic signatures have the same legal force as handwritten signatures.	INITIALS	REVIEW
☐	I acknowledge that canine genetic outcomes cannot be guaranteed per peer-reviewed science. [Axelsson et al. — ncbi.nlm.nih.gov/pmc/articles/PMC9018920/]	INITIALS	REVIEW
☐	I understand arbitration is required. I AM WAIVING MY RIGHT TO A JURY TRIAL AND CLASS ACTION. [Fla. Stat. Ch. 682 — flsenate.gov/Laws/Statutes/2024/Chapter682]	INITIALS	REQUIRED
☐	I confirm I am at least 18 years of age and that all information I have provided is accurate.	INITIALS	REQUIRED
☐	I accept full responsibility for the Puppy's actions and welfare after the Transfer Date.	INITIALS	REQUIRED

ARBITRATION CONFIRMATION — Type exactly: *"I understand and agree to arbitration"*

ARTICLE X — SIGNATURE BLOCK

PUPPY INFORMATION

PUPPY NAME / LITTER ID		BREED / COLOR	
DATE OF BIRTH (APPROX.)		PURCHASE PRICE	

MICROCHIP NUMBER		SEX	
DEPOSIT PAID (\$)		BALANCE DUE (\$)	

BUYER INFORMATION

BUYER FULL LEGAL NAME		EMAIL ADDRESS	
STREET ADDRESS		CITY / STATE / ZIP	
PHONE NUMBER			

BUYER — ELECTRONIC SIGNATURE

Type your full legal name below. By signing, you agree this constitutes a legally binding electronic signature accepted as binding by both parties.

Full Legal Name (Electronic Signature)

Date Signed (MM / DD / YYYY)

SELLER — DREAM ENTERPRISES LLC d/b/a DREAM PUPPIES

The sale is not final until the seller's signature below is complete. Seller's signature is the final act confirming this agreement.

Carlos Lebron Rivera | CLR | Authorized Seller | Dream Enterprises LLC Authorized Representative Signature

Date Signed (MM / DD / YYYY)

This agreement was prepared by Dream Enterprises LLC. It does not constitute legal advice. Both Parties are encouraged to consult independent legal counsel before signing.

Where every pup gets a dream start.